

HOUSE No. 3256

The Commonwealth of Massachusetts

PRESENTED BY:

Mark D. Sylvia

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the separation of agricultural land for renewable energy purposes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>1/16/2025</i>

HOUSE No. 3256

By Representative Sylvia of Fairhaven, a petition (accompanied by bill, House, No. 3256) of Mark D. Sylvia for legislation relative to the separation of agricultural land for renewable energy purposes. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1889 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the separation of agricultural land for renewable energy purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 17 of chapter 61A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting, after the first sentence, the following sentence:-

3 Notwithstanding the provisions in this section, if, by conveyance or other action of the
4 owner thereof, a portion of land previously used for agricultural purposes, which is valued,
5 assessed and taxed under the provisions of this chapter is separated for the purpose of producing
6 renewable energy, as defined in section 1 of chapter 164 of the General Laws, the land so
7 separated shall not be subject to liability for conveyance or roll-back taxes applicable thereto.